

TEXAS HABEAS CORPUS QUESTIONNAIRE

Postconviction Relief Intake Form

Texas Code of Criminal Procedure Articles 11.07, 11.072, 11.08, 11.09

INSTRUCTIONS

This questionnaire is designed to gather information necessary to evaluate your potential habeas corpus case. Please complete all sections as thoroughly as possible. Your answers are confidential and protected by attorney-client privilege. If you do not know an answer, write "Unknown." If a question does not apply to your situation, write "N/A." Attach additional pages if needed.

IMPORTANT: This questionnaire does not create an attorney-client relationship. Submitting this form does not guarantee representation. Time limits (statutes of limitations) may apply to your case. Do not delay in seeking legal assistance.

SECTION 1: PERSONAL INFORMATION

Full Legal Name: _____

Other Names Used (aliases, maiden name): _____

Date of Birth: _____

TDCJ Number (if applicable): _____

SID Number: _____

Current Location/Facility: _____

Current Mailing Address: _____

City, State, ZIP: _____

Phone Number: _____

Email Address: _____

Emergency Contact Name: _____

Emergency Contact Phone: _____

Emergency Contact Relationship: _____

SECTION 2: TYPE OF RELIEF SOUGHT

Check all that apply to your situation:

☐ **Art. 11.07** - Felony conviction - currently incarcerated or completed sentence

- ☐ **Art. 11.072** - Felony conviction - currently on community supervision (probation)
☐ **Art. 11.08** - Felony charge - pretrial detention (not yet convicted)
☐ **Art. 11.09** - Misdemeanor charge - pretrial detention (not yet convicted)

SECTION 3: CASE INFORMATION

Primary Case (the conviction/charge you are challenging):

Case/Cause Number: _____

Court (e.g., 299th District Court): _____

County: _____

Offense(s) Charged/Convicted: _____

Date of Arrest: _____

Date of Indictment/Information: _____

Date of Plea or Trial: _____

Type of Proceeding:

☐ Guilty Plea ☐ Jury Trial ☐ Bench Trial (Judge)

Sentence Received:

Prison Term: _____

Probation Term: _____

Fine Amount: \$ _____

Restitution: \$ _____

Date Sentence Imposed: _____

- ☐ Sentence Enhanced (prior convictions) ☐ Deadly Weapon Finding
☐ Sex Offender Registration Required ☐ Deferred Adjudication

SECTION 4: PRIOR CRIMINAL HISTORY

List ALL prior convictions (attach additional pages if needed):

Year	Offense	County/State	Sentence	Case Number
_____	_____	_____	_____	_____
_____	_____	_____	_____	_____
_____	_____	_____	_____	_____
_____	_____	_____	_____	_____

SECTION 5: TRIAL ATTORNEY INFORMATION

Trial Attorney's Name: _____

Attorney's Phone: _____

Attorney's Address: _____

Was attorney:

☐ Retained (hired) ☐ Court-appointed ☐ Public Defender

Rate your satisfaction with trial attorney's representation:

☐ Very Satisfied ☐ Satisfied ☐ Unsatisfied ☐ Very Unsatisfied

SECTION 6: APPEAL INFORMATION

Did you file a direct appeal? ☐ Yes ☐ No

If yes, Court of Appeals Case Number: _____

Appellate Attorney's Name: _____

Date of Appeals Court Decision: _____

Result of Appeal: _____

Did you file a Petition for Discretionary Review (PDR) to the Texas Court of Criminal Appeals?

☐ Yes ☐ No ☐ Don't Know

If yes, PDR Case Number: _____

Date of CCA Decision: _____

SECTION 7: PRIOR HABEAS CORPUS APPLICATIONS

CRITICAL: Texas law generally limits applicants to ONE state habeas application. Prior applications may affect your ability to file.

Have you previously filed a state habeas corpus application (Art. 11.07)?

☐ Yes ☐ No

If yes, provide the following for EACH prior application:

Writ Number: _____

Date Filed: _____

Claims Raised: _____

Result (granted/denied/dismissed): _____

Date of Final Decision: _____

Have you filed a federal habeas corpus petition (28 U.S.C. 2254)?

☐ Yes ☐ No

If yes, Federal Case Number: _____ Result: _____

SECTION 8: GROUNDS FOR RELIEF

Check ALL grounds that may apply to your case. You will explain each in detail below.

☐ **Ineffective Assistance of Trial Counsel**

Attorney failed to properly investigate, prepare, or represent you

☐ **Ineffective Assistance of Appellate Counsel**

Appellate attorney failed to raise meritorious issues on appeal

☐ **Actual Innocence**

You are factually innocent of the crime

☐ **Newly Discovered Evidence**

New evidence exists that was not available at trial

☐ **False or Misleading Evidence**

Prosecution used false testimony or fabricated evidence

☐ **Brady Violation**

Prosecution withheld favorable evidence

☐ **Prosecutorial Misconduct**

Improper conduct by the prosecutor

☐ **Illegal Sentence**

Sentence exceeds legal limits or was improperly calculated

☐ **Involuntary Plea**

Guilty plea was not knowing, voluntary, or intelligent

☐ **Plea Bargain Violation**

State or court failed to honor plea agreement

☐ **Jury Misconduct**

Improper jury deliberations or outside influences

☐ **Ineffective Counsel During Plea**

Attorney gave incorrect advice about plea consequences

☐ **Denial of Right to Counsel**

Denied attorney at critical stage

☐ **Other Constitutional Violation**

Other violation of state or federal constitution

SECTION 9: DETAILED EXPLANATION OF CLAIMS

For EACH ground checked above, provide a detailed explanation. Include: (1) what happened, (2) when it happened, (3) who was involved, (4) what evidence supports your claim, and (5) how you were harmed. Use additional pages as needed.

Claim 1:

Ground: _____

Explanation:

Claim 2:

Ground: _____

Explanation:

Claim 3:

Ground: _____

Explanation:

SECTION 10: TRIAL ATTORNEY PERFORMANCE

If claiming ineffective assistance of counsel, check all issues that apply:

- ☐ Failed to investigate the facts of the case
- ☐ Failed to interview or call witnesses
- ☐ Failed to obtain or present expert witnesses
- ☐ Failed to investigate my background for mitigation
- ☐ Failed to file appropriate pretrial motions
- ☐ Failed to object to inadmissible evidence
- ☐ Failed to adequately prepare for trial
- ☐ Failed to properly cross-examine witnesses
- ☐ Failed to challenge identification procedures
- ☐ Failed to investigate alibi witnesses
- ☐ Gave incorrect advice about plea consequences
- ☐ Failed to communicate plea offers
- ☐ Failed to explain immigration consequences
- ☐ Failed to explain sex offender registration requirements
- ☐ Failed to challenge legality of search/seizure
- ☐ Failed to request jury instructions
- ☐ Failed to preserve issues for appeal
- ☐ Had a conflict of interest
- ☐ Was impaired or distracted during representation
- ☐ Provided ineffective assistance at sentencing

Describe any other issues with your trial attorney:

SECTION 11: WITNESSES

Witnesses who support your claims:

List anyone who has information supporting your claims (include contact information if known):

Name	Relationship	Contact Information	What They Know

Witnesses NOT called at trial who should have been:

SECTION 12: EVIDENCE AND DOCUMENTS

Check all documents you have access to:

- ☐ Indictment or Information
- ☐ Judgment and Sentence
- ☐ Reporter's Record (trial transcript)
- ☐ Clerk's Record
- ☐ Plea Paperwork
- ☐ Police Reports
- ☐ Witness Statements
- ☐ Expert Reports
- ☐ Laboratory Reports
- ☐ Photographs/Videos
- ☐ Appeals Court Opinion
- ☐ PDR Decision
- ☐ Prior Habeas Decisions
- ☐ Attorney Correspondence
- ☐ Discovery Materials

Describe any NEW evidence not presented at trial:

SECTION 13: IMMIGRATION STATUS (if applicable)

Are you a United States citizen? ☐ Yes ☐ No

If no:

Country of Citizenship: _____

Immigration Status at time of conviction: _____

Are you in removal/deportation proceedings? ☐ Yes ☐ No

Were you advised of immigration consequences before pleading guilty? ☐ Yes ☐ No

SECTION 14: CURRENT STATUS

Current custody status:

☐ TDCJ Prison ☐ County Jail ☐ State Jail ☐ Federal Custody

☐ Community Supervision (Probation) ☐ Parole ☐ Released/Discharged

Projected Release Date (if incarcerated): _____

Parole Eligibility Date: _____

Have you completed your sentence? ☐ Yes ☐ No

If yes, are you experiencing collateral consequences (employment, housing, etc.)? ☐ Yes ☐ No

Explain:

SECTION 15: TIME-SENSITIVE INFORMATION

WARNING: Strict time limits apply to habeas corpus applications. Answer carefully.

Date conviction became final (mandate issued): _____

When did you first discover the grounds for this application?

Date: _____ Circumstances: _____

Why are you filing now?

SECTION 16: ADDITIONAL INFORMATION

Is there anything else we should know about your case?

CERTIFICATION AND SIGNATURE

I declare under penalty of perjury that the information provided in this questionnaire is true and correct to the best of my knowledge. I understand that providing false information may adversely affect my case and could result in criminal prosecution for perjury. I understand that completing this questionnaire does not create an attorney-client relationship and does not guarantee that I will receive legal representation.

Signature: _____

Printed Name: _____

Date: _____

TDCJ/Inmate Number: _____

FOR OFFICE USE ONLY

Date Received: _____

Received By: _____

Conflict Check Completed: _____

Statute of Limitations Review: _____

Case Assigned To: _____

Initial Assessment: _____